

disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to reasonably accommodate the plaintiff's disability. (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1009-1010.) With respect to failure to engage, a plaintiff has to additionally allege that she requested a reasonable accommodation so that she could perform the essential job requirements and defendant failed to participate in a timely, good faith interactive process. (*Gelfo v. Lockheed Martin Corp.* (2006) 140 Cal.App.4th 34, 54.)

Plaintiff argues the County “misapplies the pleading standard.” The Court agrees to some extent. While there are some inferences that could be drawn from the allegations, these border on legal conclusions. Plaintiff must do better to meet the factual pleading requirements, including alleging that she was able to perform essential functions of her position, and either the reasonable accommodation to which she was entitled or that she was willing to participate in an interactive process to determine whether a reasonable accommodation could be made, or both.

The motion is granted with respect to the ninth and tenth causes of action, with leave to amend.

4. Interference with Accommodations Under FEHA (Gov. Code § 12940) (C/A 11)

The County challenges this cause of action on the basis that it simply duplicates the cause of action for failure to accommodate. Plaintiff correctly responds that, assuming these claims overlap, dismissal is not warranted at the pleading stage. Still, based on the lack of sufficient allegations with respect to the tenth cause of action, this claim also fails. The motion is granted with respect to the eleventh cause of action, with leave to amend.

D. Contra Costa Health Services as a Defendant

The County seeks an order “dismissing” Contra Costa Health Services, which, according to the motion, does not exist as a separate entity. The plaintiff opposes such “dismissal.” The distinction between the actual moving defendant and the imaginary one that it seeks to dismiss is likely one without a difference. Since the complaint currently fails to state a cause of action, the Court declines to grant the motion on these grounds, in support of which the County provides no evidence (just legal commentary not binding on the particular entities at issue here), but nonetheless notes that if the County succeeds in defeating plaintiff’s complaint, any imagined or subsidiary entity (including Contra Costa Health Services) would be entitled to the same result.

9. 9:00 AM CASE NUMBER: C25-03841
CASE NAME: TERESA BANKS VS. 420 MEDFORD REO, LLC
***HEARING ON MOTION IN RE: TRANSFER OF VENUE**
FILED BY: 420 MEDFORD REO, LLC
TENTATIVE RULING:

Defendant 420 Medford REO, LLC (“Defendant”) filed a motion to transfer venue on February 13, 2026 (the “Motion”). The Motion was set for hearing on June 29, 2026.

Background

Defendant filed the Motion to transfer the action to Alameda County Superior Court. See Motion filed February 13, 2026, p. 1. The Proof of Service attached to the Motion and dated February 13, 2026

reflects service on the plaintiff. The Motion was unopposed.

On June 24, 2026, plaintiff Teresa Banks ("Plaintiff") notified the Court that the case was removed to Federal Court. See Notice re Removal filed June 24, 2026. The Certification of Service of Removal to Federal Court dated June 22, 2026 filed as part of the Notice re Removal reflects service on Defendant.

Analysis

Given the above the Court finds as follows:

- 1) The case has been removed to Federal Court.

Disposition

The Court hereby finds and orders as follows:

- 1) The matter is ordered OFF CALENDAR and the hearing set for June 29, 2026 is hereby VACATED.

10. 9:00 AM CASE NUMBER: C26-00017
CASE NAME: ALBERTO DUARTE VS. MICHELLE KOSINSKI
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:

Lillian Sedaghat and Natalie Lozovsky of the Sedaghat Law Group ("Counsel") filed a Motion to be Relieved as Counsel on February 18, 2026 (the "Motion to be Relieved as Counsel"). The matter was set for hearing on June 29, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Alberto Duarte ("Plaintiff").

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship. See Declaration filed February 18, 2026, ¶2. Plaintiff has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. Counsel to resubmit an updated order after hearing (MC-053), including the current next scheduled hearing in Paragraph 7 as well as confirming the client's last known address and telephone number at Paragraph 6.